

Workspace 'Workspace 1' in 'Environmental Law '

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17/8/26

- i) Stated that Art. 21 is the most important Article in the Constitution for the environment.
- ii) Stated the **Vellore Citizens Case** — established that Right to Life includes Right to Environment.
- iii) Stated EIA — Environmental Impact Assessment.
- iv) Established that Prof. has own wishes — to be able to see Blue Skies & eat healthy fresh food — as part of Art. 21.
- v) **Sukla Kumar v S/o Bhanu** — The Court recognised that "Right to life" included Right to Enjoyment of Pollution Free Air & Water.
- vi) Strongly emphasised the Constitutional Triangle = 21, DPSP Art. 48A, Fundamental Duty 51A(g).
- vii) "Art. 21 gives me a Constitutional claim. Art. 48A gives the State a Constitutional direction, Art. 51A(g) gives citizens a Constitutional responsibility."
- viii) Began with group activity — Presenting hypotheticals where we need to decide if to go along with the project at the cost of environment or not.
- ix) Focused on the application of writs of which ones for these disputes.
- x) Stated about "Stockholm 1972", Rio 1992.
- xi) Hinted that question on Right to life, which includes environment, may come.
- xii) Began connecting Preamble of the Constitution — "Socialist" is talking about environment indirectly.
- xiii) **MC Mehta case, River Pollution case, R.L.K.E case, Union Carbide case, Bhopal case.**
- xiv) Unit IV, Topic 2 is completed.

24/8/26

DATE — 24/8/26

- i) Began by stating that for the mid sem exam — unit 1, 2, 3, 4 is coming.
- ii) Also stated about the content link (Gus share point) — available in group.
- iii) Stated that the Constitution articles have to be studied, in relation to what has been taught.
- iv) https://gusindia01-my.sharepoint.com/:f/g/personal/shubham_joshi_ddn_upes_ac_in/IgCKK3sGxqj2R4DqFmZFQ6KQAbED3aTZz8DFHGu9TqcFbfg?e=UpZSpB
- v) Started discussing about the Internal Assessment — page 4 of the Course plan.
- vi) Stated that the for the first two assessments — AI can be used — 1. And 2. Also, wants the prompt that we used (I personally have no intention of sharing the real prompt since I don't want to share the way I actually use you)
- vii) Stated that for the marking system, professors cannot actually give everyone the highest marks, therefore the subjective assignment submission of mine, need not be great, but better than everyone else.
- viii) Stated that "Detailed Rubric" in the Course Plan need be followed (however, I personally think that since the object is to score the maximum marks, then it should definitely go beyond the rubrics stated).
- ix) Began with Unit IV — Strict Liability and Absolute Liability — begun with this topic since it's comparatively small for Professor to cover in one class. I suspect that related judgements and case studies are going to be discussed.
- x) Stated that Absolute Liability — No exceptions at all for excluding liability of such entity.
- xi) Stated that under Strict Liability — Act of God can be an exception.
- xii) stated that for these above topics, explanation of the Rylands v Fletcher and MC Mehta v Union of India is required to be explained.
- xiii) Stated that — to counter the action of shying away from liability, the concept of Absolute Liability was introduced.
- xiv) Hinted that Strict Liability and Absolute Liability may come for 5 marks or 10 marks in the Mid Semester Examinations.

31/8/26

DATE — 31/8/26

- i) Began with the Constitutional Triangle and **Subah Kumar v. State of Bihar**.
- ii) BNS addresses environmental protection primarily through Sections 270, 271, 279, 280. It targets public nuisance, pollution, health hazards. Section 270 — public nuisance — it punishes any act or omission that causes danger or annoyance to the public living in that area, it applies to localised pollution and ecological imbalance. Section 271 — negligent act likely to spread infection all disease dangerous to life. Section 279 — fouling water of a public spring or reservoir making it unfit for the ordinary use of the people. Section 280 — making atmosphere noxious to health. Stated that these particular sections must be studied for the exam.
- iii) BNSS — Section 152 — it empowers District or Sub-divisional magistrates to issue conditional orders to remove public nuisances including stopping harmful traits or clearing obstructions. Stated that these particular sections must be studied for the exam.
- iv) **Pratibha Sharma v. Department of Environment (2025)** — Section 26 of the National Green Tribunal (NGT) was attracted. Issue — Gaps in the transit and monitoring mechanism of the tankers transporting STP (Sewage Treatment Plants). Ruling — NGT ordered strict enforcement of the transit passes and maintaining chronological record keeping for carrying of the waste. Sections 270 of BNS and Section 26 of NGT was attracted. Very important for the exam, hinting towards "shall" come.
- v) **State of H.P. — Judicial clarification by H.P. High Court (clarification issued by the Court on its own volition)** — The Himachal High Court clarified the definition of "public nuisance" effecting civic sanitation infrastructure under the new code. It clarified the scope of Section 152 of BNSS and stated that it includes trade, occupation, injury to health, physical discomfort to the community, any public nuisance affecting the environment and causing discomfort to the people living in the vicinity.
- vi) **Zaifal v. Tehsildar and Executive Magistrate (2025) Kerala HC** — also stated to be very important.
- vii) Stated the distinction between "private nuisance" and "public nuisance".
- viii) **Vellore Citizens Welfare Forum v. Union of India (1996)**, and **Municipal Council, Ratlam v. Vardichand (1980)** — stated that these although these cases deal with IPC, nonetheless these are very important and must be studied as well, for the exam.

3/9/26

DATE — 3/9/26

- i) Began by stating that Torts would be covered, the relevant areas of such, in this class.
- ii) Stated that 2 areas would be covered — a) Nuisance b) Negligence.
- iii) Environment pollution as a Tort — 2 branches — a) Negligence b) Nuisance (also branched into 2 — Public Nuisance and Private Nuisance).
- iv) Began with the branch of Nuisance — "It is an interference of the right of others" — under Public (Larger Number of People) ; Private (One on One) — Stated that Public Nuisance is generally seen more than Private Nuisance, with regard to Environment — Also stated that the difference between Public Nuisance and Private Nuisance is enough to know for the exam.
- v) For Public Nuisance — "It is caused when the action of one, effects the community at large — **Ramlal v. Mustafabad Oil and Cotton Ginning (1968)**.
- vi) For Private Nuisance — "Example — When the pollution caused harm to a group of people but, that person suffered additional harm in addition to the harm suffered by that group of people, is a Private Nuisance relating to the environment."
- vii) Stated — "2 significant factors to determine tortious liability are — a) Foreseeability b) Reasonableness — For a) **Forsees Tankship Limited v. Miller Pty (1966)**.
- viii) Began with Negligence — Stated essentials of negligence — stated about the concept of "Foreseeability"; stated about the concept of "Reasonableness". Stated about the concept of "Absolute Liability" and **Mc Mehta v. Union of India**; **Sreemram Fertilisers case**.
- ix) Negligence — **Nareish Datt Tyagi v. State of Uttar Pradesh (1990)** — Fumes from the pesticides was released and it entered the adjacent building and caused death of 3 children along with the fetus of a pregnant mother. The Court held the case to be to be clearly that of negligence ; **Rylands v. Fletcher**.
- x) Stated that the above is going to come for minimum 2 marks and maximum 5 marks, in the exam, could be more if the question is that of an analytical format.
- xi) Began with doubt clearing sessions, since Unit 1, 2, 3, 4 — for Mid sem exam are completed in class.
- xii) Stated about the "Polluter Pays Principle".
- xiii) Since this subject's class is also taken online by different faculty (although they would not frame the question paper) — there is also another link with different materials that cover the topics that have not been covered by Professor. The data for such would also need to be drawn from such material.
- xiv) Stated that at least 2 to 3 cases needs to be remembered for each topic. Professor also stated that since most of the cases are similar, strategically the number of cases

to be remembered may be reduced.